

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 17-05

CMI DISTRIBUTION, INC.

COMPLAINANT,

v.

SERVICE BY AIR, INC., RADIANT CUSTOMS SERVICES INC. (FORMERLY KNOWN
AS SBA CONSOLIDATORS, INC.) and LAS FREIGHT SYSTEM LTD.

RESPONDENTS.

MOTION TO DISMISS
OF RESPONDENTS SERVICE BY AIR, INC.
AND RADIANT CUSTOMS SERVICES INC.

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I. INTRODUCTION AND RELIEF REQUESTED

COME NOW respondents Service by Air, Inc. (“SBA”) and Radiant Customs Services Inc. (“Radiant”), pursuant to 69 CFR §502.70, FRCP 12(b)(6) and FRCP 12(b)(1), and move to dismiss complainant’s Verified Complaint. Bill of lading documentation on which complainant’s Verified Complaint relies demonstrates no respondent operated as an NVOCC, or “held itself out as an NVOCC,” in the shipments at issue. Thus, no respondent is subject to or operated in violation of FMC regulations or the Ocean Shipping Act of 1984, 46 U.S.C. § 40101, *et seq.* (“the Shipping Act”). SBA and Radiant file this motion in the hopes a clearly meritless and unfounded action can be avoided without needless expenditure of the parties’ and Commission’s time and resources.

II. STATEMENT OF FACTS

As described in detail below, this motion is brought based on the absence of bill of lading documentation essential to complainant’s allegation that one or more respondents operated as an NVOCC in the subject transactions, or “held itself out as an NVOCC,” and on the existence of documentation which demonstrates that entities other than respondents did act as the carriers of record. These are proper bases for a motion to dismiss on the pleadings under FRCP 12(b). In addition to their concurrently filed Statement of Material Facts, SBA and Radiant summarize the factual background so as to provide the Commission a complete understanding of operative facts and circumstances.¹

A) Respondents

At times material, SBA, located in Bensenville, Illinois, operated as an indirect air carrier. It was never licensed for, and has never participated in, ocean transportation. At times material, SBA’s wholly-owned subsidiary, SBA Consolidators, Inc., operated as a customs brokerage and warehouse operator, and held an FMC-issued ocean freight forwarder license. In

¹ The points in this section are confirmed by the concurrently filed Affidavit of Edward A. Zasada.

or about June 2015, non-party Radiant Global Logistics, Inc. acquired SBA, and by extension, SBA's subsidiary, SBA Consolidators, Inc.

Non-party fRadiant Global Logistics, Inc.'s subsidiary, respondent Radiant, contrary to complainant's allegation, is not properly designated as "formerly known as SBA Consolidators, Inc.," as respondent Radiant was formed in 2010, and long predates its acquisition of SBA Consolidators, Inc. in June 2015. SBA still exists as a separate corporate entity wholly owned by Radiant Global Logistics, Inc.

Respondent LAS Freight Systems, Inc., a China company located in various locations in China, operated as an ocean freight forwarder as provided by China law.²

B) Transactions at Issue

In or about early 2014, complainant contacted SBA requesting that SBA arrange for importation from China into the U.S. of some 60 containers of plastic bags. Complainant specifically requested ocean transportation, port-to-door service, and customs clearance. SBA engaged LAS Freight to arrange the subject ocean transports. In turn, LAS Freight engaged a series of China ocean transportation service providers which issued through bills of lading from China to SBA's facility in Bensenville for the transports at issue.³ The consignee identified in each bill of lading is SBA, and the shipper identified is LAS Freight Systems, Inc.'s subsidiary "LAS-SWEG Logistics (Shanghai), Ltd." The carriers of record identified in the bills of lading are China-based forwarders "U.S. United Logistics (NINGNO) Co.," "Ocean Star Transport Int'l, Ltd.," "Ever Since Group Co., Ltd.," "Acme Freight Services Corp.," "Anchor Logistics," and "Global Links Express, Inc." No bill of lading identifies SBA as an NVOCC or otherwise a carrier of record.

The ocean transports landed in various west coast ports, and were transported by rail to inland destinations, mostly Chicago. SBA Consolidators, Inc. processed customs clearance, which is the only role it played in the entire series of transactions at issue.

² See http://www.hktdc.com/sourcing/hk_company_directory.htm?companyid=1X02808S&locale=en.

³ Copies attached as Exhibit 1 to the Affidavit of Edward A. Zasada.

SBA engaged motor carrier Freight Tech Cartage, Inc. (“Freight Tech”) to transport most of the cargo from the inland rail yards to Freight Tech’s yard in Naperville, Illinois, where it would await further delivery instructions. Complainant’s China-based suppliers instructed LAS Freight, which in turn instructed SBA, not to release the cargo to complainant unless and until confirmation was received that complainant had paid the suppliers under the commercial invoices for complainant’s purchase of the cargo.

C) “Demurrage” Charges

At various times between April 2014 and July 2015,⁴ SBA notified complainant that its cargo had arrived, and was ready for onward delivery from Freight Tech’s yard pending SBA’s receipt of confirmation from the China-based suppliers that complainant had paid the commercial invoices. However, complainant repetitiously advised SBA over an extended time period that complainant was experiencing cash-flow issues that prevented it from paying the suppliers. SBA informed complainant numerous times that the “free days” Freight Tech allotted for storage had expired for specified containers, and that extensive “demurrage” charges were accruing. Indeed, SBA persistently urged complainant to retrieve its property to avoid the mounting charges, but complainant failed to do so. Freight Tech charged SBA, and SBA, on complainant’s behalf, paid Freight Tech, some 1,400 storage days between April 2014 and July 2015. When complainant had rectified its cash-flow issues, it agreed it owed, and fully paid, SBA the invoiced demurrage without complaint or objection.

D) Complainant’s Allegations

As more specifically explained in the accompanying Statement of Material Facts, complainant alleges in its Verified Complaint “[o]n information and belief,⁵ Respondents, either individually or jointly, held themselves out as NVOCCs,” and “[o]n information and belief,

⁴ See table attached as Exhibit 1 to the Verified Complaint.

⁵ Why such allegations would be “on information and belief” is unclear, as complainant necessarily would have documentary evidence of these contentions were they accurate.

Respondents, either individually or jointly, operated as Non-Vessel-Operating Common Carriers (NVOCCs) within the meaning of the Shipping Act on the more than 60 shipments at issue.”

Complainant further alleges in its Verified Complaint (with no attached substantiation) that “[a]lthough the Shipments moved by ocean, rather than by air, Service by Air issued airway bills for the Shipments.” Solely on this basis, complainant alleges that “[i]n issuing bills of lading for the ocean transportation at issue, Service by Air was acting as an NVOCC”; and that “Service by Air held itself out as an NVOCC.” Thus, the alleged SBA bills of lading are complainant’s only basis for this action.

Complainant further alleges in its Verified Complaint that respondent Radiant “is listed as a licensed OTI”; that “[d]uring the time period at issue, Radiant, formerly known as SBA Consolidators, was a licensed OTI and had a tariff on file with the FMC”; that “SBA Consolidators’ tariff on file with the FMC contains no rules pertaining to demurrage and states, at a section entitled ‘Sub-Rule 004-Free Time and Detention at Destination Terminal,’ ‘No specific rules in effect at this time.’” Significantly, Radiant is licensed only as an ocean freight forwarder, and not as an NVOCC.

Complainant further alleges in its Verified Complaint that “Service by Air, Inc. ... is, and at all times pertinent to this Verified Complaint was, an OTI within the meaning of the Shipping Act, 46 U.S.C. § 40102(19), subject to regulation by the FMC”; and that “Respondent Radiant Customs Services Inc. (“Radiant”), formerly known as SBA Consolidators ... is, and at all times pertinent to this Verified Complaint was, an OTI within the meaning of the Shipping Act, 46 U.S.C. § 40102(19), subject to regulation by the FMC and bearing OTI License Number 9688. SBA Consolidators, Inc. was acting as an NVOCC during the relevant time period.”

In its Verified Complaint, complainant alleges causes of action against respondents based on violations of the Shipping Act as follows: 46 U.S.C. § 40901-Acting as an OTI Without Holding a License Issued by the Commission; 46 U.S.C. § 41102(c) - Failure to Observe Just and Reasonable Practices; 46 U.S.C. § 41104 (2) (c) - Failure to Provide Service in Accordance

with Rates, Charges, and Rules Contained in a Published Tariff; and 46 U.S.C. § 40501 - Failure to Maintain Tariff Showing All Rates, Charges, Rules and Practices.

III. LEGAL ARGUMENT

A) *Standard of Motion to Dismiss under 69 CFR §502.70 and FRCP 12(b)*

When considering a motion to dismiss for failure to state a claim, the Commission applies the same standards as do federal courts.⁶ To survive a motion to dismiss, factual allegations in the complaint must state a claim that is “plausible on its face.”⁷ A claim is deemed plausible when the plaintiff pleads factual content that allows the court to “draw the reasonable inference that the defendant is liable for the misconduct alleged.”⁸ “Factual allegations must be enough to raise a right to relief above the speculative level.”⁹ To avoid dismissal, the moving party must allege “more than labels and conclusions.”¹⁰ “Threadbare recitals of the elements of a cause of action, supported by mere conclusory statements, do not suffice,”¹¹ “nor will naked assertions devoid of further factual enhancement.”¹²

“When a defendant makes a Rule 12(b)(1) motion challenging the factual basis of subject matter jurisdiction, courts have required the plaintiff to bear the burden of proving that

⁶ “As the Commission’s Rules do not address motions to dismiss for lack of subject matter jurisdiction or failure to state a claim, Federal Rules 12(b)(1) and 12(b)(6) apply.” *Edaf Antillas, Inc. V. Crowley Caribbean Logistics, Llc; IFS International Forwarding, S.L.; and IFS Neutral Maritime Services*, 2014 WL 5824274, at 5 (F.M.C., 14-04); see also *The Lake Charles Harbor and Terminal District v. West Cameron Port, Harbor and Terminal District*, 2007 WL 2468431 (F.M.C., 06-02); 46 C.F.R. § 502.12. See, also *Cornell v. Princess Cruise Lines, Ltd.*, 33 S.R.R. 614, 620 (F.M.C., 13-02).

⁷ *Bell Atl. Corp. v. Twombly*, 550 U.S. 544, 570 (2007).

⁸ *Ashcroft v. Iqbal*, 556 U.S. 662, 678 (2009).

⁹ *Twombly*, 550 U.S. at 555–56.

¹⁰ *Id.*; see also *Coburn v. Evercore Trust Co., N.A.*, 844 F.3d 965, 968 (D.C. Cir. 2016).

¹¹ *Ashcroft v. Iqbal*, 556 U.S. 662, 678 (2009).

¹² *Maher Terminals, LLC, v. The Port Authority Of New York And New Jersey*, 2015 WL 9426189, at 12 (F.M.C., 08-03).

jurisdiction exists.”¹³ The Commission must presume that it lacks subject-matter jurisdiction until complainant, as the party seeking to invoke the jurisdiction, establishes otherwise.¹⁴

B) The Commission May Consider the Bills of Lading in Ruling on this Motion

The sole premise of complainant’s action is that SBA issued bills of lading for the subject transports, and on that basis alone, operated as an NVOCC, and “held itself out as an NVOCC.” However, complainant attaches no examples of such purported bills of lading to its Verified Complaint. Complainant necessarily received copies of operative bills of lading at time of the transports. Bills of lading issued for the subject transports are pivotal to complainant’s allegations and are referenced in and relied upon by the Verified Complaint. Thus, under FRCP 12(b)(6), as interpreted by federal courts, the Commission may consider them in this motion. Moreover, under FRCP 12(b)(1), the Commission may consider any evidence at all to determine whether it has subject matter jurisdiction.

While FRCP 12(b) motions to dismiss are generally decided on the face of the complaint, “a court may consider documents attached to the complaint as an exhibit or incorporated in it by reference, matters of which judicial notice may be taken, or documents either in plaintiffs’ possession or of which plaintiffs had knowledge and relied on in bringing suit.”¹⁵ Regarding FRCP 12(b)(1), “[w]hen subject matter jurisdiction is at issue, courts are permitted to consider evidence outside the pleadings without converting the motion to dismiss into a motion for summary judgment.”¹⁶ In considering a motion to dismiss for lack of subject matter jurisdiction under Rule 12(b)(1), a court may consider “matters outside the pleadings, such as testimony and affidavits.”¹⁷

¹³ *The Lake Charles Harbor and Terminal District v. West Cameron Port, Harbor and Terminal District*, 2007 WL 2468431, at 4 (F.M.C., 06-02).

¹⁴ *Kokkonen v. Guardian Life Ins. Co. of Am.*, 511 U.S. 375, 377, 114 S.Ct. 1673, 1675 (1994).

¹⁵ *Edaf Antillas*, 2014 WL 5824274, at 6 (F.M.C., 14-04); *see also Lee v. City of Los Angeles*, 250 F.3d 668, 688 (9th Cir. 2001).

¹⁶ *The Lake Charles Harbor and Terminal District v. West Cameron Port, Harbor and Terminal District*, 2007 WL 2468431, at 4 (F.M.C., 06-02).

¹⁷ *E.g., Edaf Antillas*, 2014 WL 5824274, at 5 (F.M.C., 14-04); *Streak Products, Inc. v. UTI, United States, Inc.*, 2013 WL 9808687, at 4 (F.M.C., 13-04).

C) The Verified Complaint fails to State a Claim for Which Relief May be Granted, and the Commission Lacks Subject Matter Jurisdiction over Respondents

The Verified Complaint fails and must be dismissed for failure to state a claim for which relief may be granted, and for lack of the Commission's subject matter jurisdiction over a matter not governed by the Shipping Act, if it is established that no respondent is a "shipping entity." As the Commission has held, "...the Commission's jurisdiction is limited and not without boundaries; it is confined to the authority Congress has delegated to the agency. That delegation of power has never extended to jurisdiction over non-shipping entities."¹⁸

Under this standard, complainant's allegations against Radiant, purportedly "formerly known as" SBA Consolidators, Inc., are patently groundless on their face. Complainant alleges "Radiant was an OTI," and that it is "licensed as an OTI,"¹⁹ but makes no assertion as to how Radiant could possibly have operated as, or held itself out as, an NVOCC. It does not even allege Radiant or SBA Consolidators, Inc. ever issued a bill of lading.

As specified in the definition section of the Shipping Act at 46 USC §40102(16):

"non-vessel-operating common carrier" means a common carrier that -
(A) does not operate the vessels by which the ocean transportation is provided;
and

(B) is a shipper in its relationship with an ocean common carrier.

The Commission has ruled ...

... that in determining whether an entity is operating as a common carrier, no single factor is determinative, although "holding out" is an essential factor [citation omitted]. ...

[T]he Commission must evaluate the indicia of common carriage on a case-by-case basis.... The most essential factor is whether the carrier holds itself out to accept cargo from whoever offers to the extent of its ability to carry, and the other relevant factors include the variety and type of cargo carried, number of shippers, type of solicitation utilized, regularity of service and port coverage, responsibility of the carrier towards the cargo, issuance of bills of lading or other standardized

¹⁸ *DNB Exports LLC, and AFI Elektromekanik ve Elektronik San. Tic. Ltd. Sti. v. Barsan Global Lojistik ve Gumruk Musavirligi A.S., Barsan International, Inc., and Impexia Inc.*, 2014 WL 5316332, at 16 (F.M.C., 11-07).

¹⁹ This is true, but only as an ocean freight forwarder, and not an NVOCC.

contracts of carriage, and method of establishing and charging rates [citations omitted]. In addition, the Commission has said that factors such as solicitation and advertising are relevant to a determination whether an entity is holding out to the public as a provider of transportation services. [citations omitted] The Commission also clarified that a common carrier does not lose common carrier status if it uses shipping contracts other than bills of lading [citations omitted].²⁰

“The Shipping Act of 1984 recognized the NVOCC as a legal entity with the status of a shipper in its relationship with an ocean common carrier but the status of a carrier in its relationship with exporter customers. An NVOCC assumes common carrier responsibilities for transportation even though it does not operate the vessels by which the ocean transportation is provided.”²¹ “Although NVOCCs usually do not own or operate vessels to actually carry the cargo, they lease facilities and services from other firms—making them the common carriers responsible for transportation of the cargo from origin to destination.... Thus, unlike an OFF, the NVOCC issues its own bill of lading to each shipper, and the vessel-operating common carrier issues a bill of lading to each NVOCC.”²² Accordingly, “a person or entity that provides NVOCC services falls within the ambit of [the Shipping Act] only when it...assumes responsibility for the transportation.”²³ Significantly, an NVOCC assumes this responsibility by issuing a bill of lading in its own name at the origin destination, i.e., “NVOCCs...ship the container by vessel under a single bill of lading in the NVOCC’s name.”²⁴

Thus, the *sine qua non* of an entity operating as an NVOCC is that it issues a bill of lading documenting itself as a carrier of record. An entity that does not issue a bill of lading for

²⁰ *Eurousa Shipping, Inc., Tober Group, Inc., and Container Innovations, Inc - Possible Violations of Section 10 of the Shipping Act of 1984 and the Commission’s Regulations at 46 C.F.R. §515.27*, 2008 WL 7149852, at 9 (F.M.C. 06-06) citing *Rose Int’l, Inc. v. Overseas Moving Network Int’l Ltd., et al*, 29 S.R.R. 119 (F.M.C., 96-05); *River Parishes Co., Inc. v. Ormet Primary Aluminum Corp.*, 28 S.R.R. 751, 763 (F.M.C. 96-06), and *Tariff Filing Practices, Etc., of Containerships, Inc.*, 9 F.M.C. 56, 62-65 (FMC 1965)).

²¹ *Nat’l Customs Brokers & Forwarders Ass’n of Am., Inc. v. United States*, 883 F.2d 93, 101 (D.C. Cir. 1989) (internal quotations omitted).

²² *Landstar Exp. Am., Inc. v. Fed. Mar. Comm’n*, 569 F.3d 493, 495 (D.C. Cir. 2009) (internal quotations and citations omitted).

²³ *Id.* at 497 (internal quotations omitted).

²⁴ *Nat’l Customs Brokers*, 883 F.2d at 101.

the shipment at the origin destination—thus assuming liability for the shipment—cannot be an NVOCC under the Shipping Act.²⁵ Complainant alleges no basis other than SBA’s purported issuance of bills of lading for its allegation that SBA acted as an NVOCC and “held itself out as an NVOCC.” Thus, in the absence of an operative bill of lading naming SBA as a carrier of record of complainant’s cargo, this action fails on its face, and must be dismissed.

As demonstrated above, no respondent issued a bill of lading for the subject transports, and the Commission may consider that submitted bills of lading demonstrate other entities actually did appear as carriers of record. Absent any other suggestion, or even allegation, of circumstances by which the Commission could rule that respondents acted or held themselves out as NVOCCs, this action must be dismissed for lack of subject matter jurisdiction under the Shipping Act, and for failure to state a claim for which relief may be granted.

D) Respondents Cannot be Liable under the Shipping Act as Ocean Freight Forwarders

SBA explained and urged to complainant throughout pre-action discussions that it could not be liable under the Shipping Act as an ocean freight forwarder because the Shipping Act does not apply to inbound cargo. “The Commission does not have jurisdiction over ocean freight forwarders that perform services on shipments coming to the United States. [Thus, such an entity] would not itself be liable for any violation of the Act.”²⁶

Moreover, nothing in the record as described above or alleged in the Verified Complaint suggests any respondent undertook freight forwarding activities. Only with the filing of the Verified Complaint did complainant first assert that one or more respondents operated as an NVOCC, transparently so that allegations regarding unlicensed operations, and operations in

²⁵ See *Prima U.S. Inc. v. Panalpina, Inc.*, 223 F.3d 126, 129-30 (2nd Cir. 2000) (holding that entity that did not issue bill of lading was not an NVOCC); see also 46 U.S.C. § 40102(6) (defining common carrier as a person who, in part, “assumes responsibility for the transportation from the port or point of receipt to the port or point of destination”).

²⁶ *Edaf Antillas, Inc. v. Crowley Caribbean Logistics, LLC; IFS International Forwarding, S.L.; and IFS Neutral Maritime Services*, 2014 WL 5824274 at 9 (F.M.C., 14-04).

violation of tariff requirements, could be included that might invoke Shipping Act jurisdiction. That approach toward eliciting Commission jurisdiction is mistaken at best.

IV. CONCLUSION

For the Verified Complaint to have merit, it must allege facts and circumstances by which one or more respondents operated as an NVOCC, or held itself out as an NVOCC. Given the absence of documentation necessary to establish that any respondent has ever operated as an NVOCC, in the subject transactions or otherwise, complainants' newly minted theory that respondents held themselves out as NVOCCs, much less operated as such, is groundless and should be dismissed.

Respectfully submitted,



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June 26, 2017

CERTIFICATE OF SERVICE

The undersigned certifies under penalty of perjury under the laws of the State of Washington that I am now and at all times herein mentioned, a resident of the State of Washington, over the age of eighteen years, not a party to or interested in the above-entitled action, and competent to be a witness herein.

On the date given below, I caused to be delivered upon the designated party below in the manner indicated, true and correct copies of the following documents filed in the case:

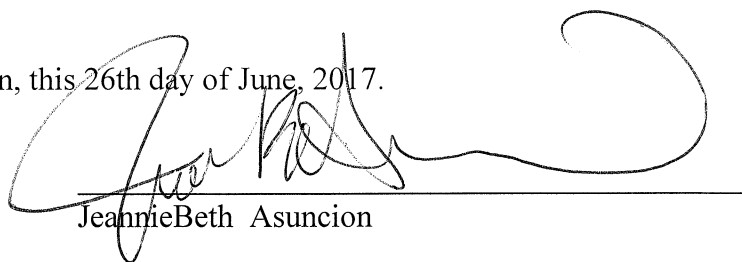
1. Motion to Dismiss of Respondents Service by Air, Inc. and Radiant Customs Services Inc.;
2. Statement of Material Facts in Support of Motion to Dismiss of Respondents Service by Air, Inc. and Radiant Customs Services Inc.; and
3. Affidavit of Edward A. Zasada in Support of Motion to Dismiss of Respondents Service by Air, Inc. and Radiant Custom Services, Inc.

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| ☐ | Via Hand Delivery |
| ☒ | Via Electronic Mail |
| ☐ | Via E-Service Within Clerk's online eFiling Application |

I declare under penalty of perjury under the laws of the state of Washington that the foregoing is true and correct.

Executed at Seattle, Washington, this 26th day of June, 2017.



JeannieBeth Asuncion